

1                   **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2                               STATE OF OKLAHOMA

3                               2nd Session of the 60th Legislature (2026)

4   ENGROSSED SENATE  
5   BILL NO. 1204

By: Mann of the Senate

and

Gise of the House

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9       An Act relating to school employees; amending 70 O.S.  
10      2021, Section 6-104, as amended by Section 2, Chapter  
11      57, O.S.L. 2025 (70 O.S. Supp. 2025, Section 6-104),  
12      which relates to sick leave for teachers and support  
13      personnel; requiring school districts to grant  
14      certain amount of paid bereavement leave to certain  
15      teachers and school support employees; directing  
16      bereavement leave to be in addition to certain leave  
17      due to miscarriage; prohibiting certain leave from  
18      negating certain negotiated leave policies; amending  
19      Section 7, Chapter 291, O.S.L. 2023 (70 O.S. Supp.  
20      2025, Section 6-104.9), which relates to the Public  
21      School Paid Maternity Leave Revolving Fund; allowing  
22      fund to be used for expenses related to paid  
23      bereavement leave; updating statutory language;  
24      updating statutory references; providing an effective  
25      date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1.       AMENDATORY       70 O.S. 2021, Section 6-104, as  
amended by Section 2, Chapter 57, O.S.L. 2025 (70 O.S. Supp. 2025,  
Section 6-104), is amended to read as follows:

Section 6-104.   A.   1.   The board of education of each school  
district in the state shall provide for sick leave for all teachers

1 employed in the district and shall pay such teachers the full amount  
2 of their contract salaries during any absence from their regular  
3 school duties for a period of time and under such conditions as the  
4 board may determine, but not less than the minimum benefits  
5 hereafter specified. Payment for sick leave shall be made on the  
6 basis of the current salary rate then in effect for the teacher  
7 receiving the payment. Unless otherwise provided in Section 6-104.8  
8 of this title, the plan shall provide that a teacher may be absent  
9 from his or her duties due to personal accidental injury, illness or  
10 pregnancy, or accidental injury or illness in the immediate family  
11 without the loss of salary for not to exceed ten (10) days during  
12 each school year, except that ~~said~~ such absence without loss of  
13 salary for teachers employed on an eleven-month contract shall not  
14 exceed eleven (11) days during each school year and for those  
15 teachers employed on a twelve-month contract shall not exceed twelve  
16 (12) days during each school year, if ~~said~~ such contract is for the  
17 work period, and not merely for pay purposes. The right to such  
18 leave shall vest at the beginning of the school year. Each school  
19 district shall provide for all teachers a minimum of three (3) days  
20 for personal business leave, upon the request of the teacher.  
21 Salary deductions for such leave shall not exceed the salary level  
22 for substitute teachers. Provided further, that these terms for  
23 personal business leave shall not negate any locally negotiated  
24 leave policies which exceed the minimum benefits ~~stated above~~ set

1 forth in this subsection. Each school district may provide not more  
2 than five (5) days each year for emergency leave. Each school  
3 district ~~will~~ shall determine the purposes for which emergency leave  
4 can be used. Those days shall not be chargeable to sick leave and  
5 ~~will~~ shall be noncumulative. Unused sick leave shall be cumulative  
6 up to a total of sixty (60) days, and cumulative sick leave shall be  
7 transferable to another school district or to the Oklahoma School  
8 for the Blind or the Oklahoma School for the Deaf where the teacher  
9 is employed the next succeeding school year, provided that the  
10 number of days transferred shall not exceed the maximum days  
11 permitted by the receiving school and that such transferred days  
12 shall be used first in case of illness and, provided further, that  
13 if the receiving school pays teachers for unused sick leave upon  
14 retirement or termination of contract, then ~~said~~ such payments shall  
15 be for only those days accumulated in the receiving school. The  
16 ~~school~~ board of education of the sending school district shall  
17 certify the exact number of days eligible for transfer.

18 2. If a teacher is employed at the Oklahoma School for the  
19 Blind or the Oklahoma School for the Deaf after July 1, 2017, any  
20 unused sick leave up to a total of sixty (60) days that is  
21 accumulated at a school district prior to such date shall be  
22 transferable.

23 B. The plan of each school district for sick leave benefits may  
24 include other terms and conditions, but shall not provide less sick

1 leave benefits than those prescribed herein. Hospital and medical  
2 proceeds may not be charged against sick leave benefits, but the  
3 proceeds received by the teacher from any insurance provided by the  
4 district for loss of compensable time may be charged against sick  
5 leave benefits. Provided the board of education may provide all or  
6 part of hospital and medical benefits, and sickness, accident,  
7 health, and life insurance or any ~~of the aforesaid~~ such benefits for  
8 any or all of its employees. On authorization of the teacher, the  
9 district may approve payroll deductions for such teacher's portion  
10 of the ~~aforesaid~~ benefits.

11 C. Each school district shall grant a teacher leave for jury  
12 service or as a witness subpoenaed in a criminal, civil, or juvenile  
13 proceeding and shall pay the teacher during such service the full,  
14 current contract salary. Provided that the district may deduct any  
15 compensation received for serving as a juror or witness from the  
16 teacher's salary during such service.

17 D. 1. A school district shall also provide for benefits for  
18 personnel other than teachers. Benefits for support personnel  
19 employees shall include provisions for paid sick leave of at least  
20 one (1) day per month of employment not to exceed the number of  
21 hours per day for which they are regularly employed cumulative to a  
22 total of sixty (60) days and cumulative sick leave shall be  
23 transferable to another school district where the person is employed  
24 the next succeeding school year; provided, that the number of days

1 transferred shall not exceed the maximum days permitted by the  
2 receiving district and that such transferred days shall be used  
3 first in case of illness up to a maximum of ten (10) transferred  
4 days per school year unless the ~~local~~ school district board of  
5 education authorizes the use of additional transferred days during  
6 the school year in an amount set by the board and, provided further,  
7 that if the receiving district pays such person for unused sick  
8 leave upon retirement or termination of employment, then ~~said~~ such  
9 payments shall be for only those days accumulated in the receiving  
10 district. The ~~school~~ board of education of the sending district  
11 shall certify the exact number of days eligible for transfer. Each  
12 school district shall provide for all support employees, a minimum  
13 of three (3) days for personal business leave, upon the request of  
14 the support employee. Salary deductions for personal business leave  
15 shall not exceed an amount necessary to cover the costs of services  
16 provided to the district by the support employee and shall not  
17 exceed the salary of the support employee. The terms for personal  
18 business leave provided by this subsection shall not negate any  
19 locally negotiated leave policies which exceed the minimum benefits  
20 ~~stated above~~ set forth in this subsection. Payment for such leave  
21 shall be calculated with regard to the definition of "support  
22 employee" provided by Section 6-101.40 of this title. ~~Provided;~~  
23 provided, however, that such benefits shall not exceed those  
24 authorized for teachers ~~hereunder~~ pursuant to this section.

1        2. Support employees, as defined by Section 6-101.40 of this  
2 title, shall be entitled to pay for any time lost when school is  
3 closed on account of epidemics or otherwise when an order for such  
4 closing has been issued by a health officer authorized by law to  
5 issue the order.

6        E. Each school district shall grant a teacher or support  
7 personnel employee three (3) days of paid bereavement leave  
8 following the death of the teacher's or employee's spouse or child,  
9 which shall include a miscarriage. Bereavement leave following a  
10 miscarriage shall be in addition to and not in place of sick leave  
11 due to miscarriage and recovery therefrom. The terms for  
12 bereavement leave provided by this subsection shall not negate any  
13 locally negotiated leave policies which exceed the minimum benefits  
14 set forth in this subsection.

15        SECTION 2.        AMENDATORY        Section 7, Chapter 291, O.S.L.  
16 2023 (70 O.S. Supp. 2025, Section 6-104.9), is amended to read as  
17 follows:

18        Section 6-104.9. A. There is hereby created in the State  
19 Treasury a revolving fund for the State Board of Education to be  
20 designated the "Public School Paid Maternity Leave Revolving Fund".  
21 The fund shall be a continuing fund, not subject to fiscal year  
22 limitations, and shall consist of all monies received by the State  
23 Board of Education from state appropriations provided for the  
24 purposes set forth in Sections 6-104 and 6-104.8 of this title. All

monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the State Board of Education for the purpose of reimbursing school districts for expenses related to providing paid maternity and bereavement leave as provided for in subsection B of this section. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the Director of the Office of Management and Enterprise Services for approval and payment.

B. School districts in this state shall file claims with the State Board of Education for reimbursement of expenses related to providing eligible employees with paid maternity leave as provided for in Section ~~4~~ 6-104.8 of this ~~act~~ title and paid bereavement leave as provided for in Section 6-104 of this title.

SECTION 3. This act shall become effective July 1, 2026.

SECTION 4. It being immediately necessary for the preservation of the public peace, health, or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS AND BUDGET, dated 04/23/2026 - DO PASS.